

BEFORE THE STATE GRIEVANCE BOARD

STATE OF COLORADO

Case No. 2010-002593

CEASE AND DESIST ORDER

IN THE MATTER OF A CEASE AND DESIST ORDER AGAINST NICOLE CHACIN,

Respondent.

On or about January 5, 2010, the State Grievance Board ("Board") received a complaint alleging that Nicole Chacin ("Respondent") did not follow established policies/procedures of Pikes Peak Mental Health ("PPMH"), that Respondent wrote a letter to the Maryland Courts which recommended that visitation rights of a complainant be stayed, and that the letter was neither documented properly nor discussed with Respondent's supervisor. Respondent is alleged to have maintained an improper relationship with a client and to have violated the NBCC Code of Ethics. These actions constitute violations of § 12-43-222(g), (i), and (u).

The Board has information from the website www.linkedin.com that Respondent is currently working as a "Volunteer Counselor at Pikes Peak Christian Church." Respondent has held that position from December 2009 to present.

The Board finds as follows:

1. The Board has jurisdiction over Respondent and the subject matter herein.
2. Respondent was not required to be listed in the State database for unlicensed psychotherapist during her employment with PPMH pursuant to § 27-66-101, C.R.S.
3. Respondent is not currently listed in the State database for unlicensed psychotherapists and is prohibited from practicing psychotherapy pursuant to § 12-43-702.5, C.R.S.
4. There exists credible evidence that Respondent has engaged in the practice of psychotherapy through Respondent's representation to the public on www.linkedin.com she is a "volunteer counselor."

Wherefore, pursuant to §§ 12-43-222(g), (i), and (u), 12-43-223(4)(a), and 12-43-702.5, the Board hereby ORDERS that the Respondent immediately CEASE AND DESIST from engaging in the unlawful practice of counseling/psychotherapy.

Within ten days after service of this order to cease and desist Respondent may request a hearing on whether the acts or practices in violation of Article 43 of Title 12, C.R.S. have occurred. Such hearing shall be conducted pursuant to C.R.S. §§ 24-4-104 and 24-4-105.

DATED this 5th day of November, 2010

STATE GRIEVANCE BOARD

By: Mark Merrill

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